

25STCV24357 25STCV24357

County: los-angeles

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Case Number: 25STCV24357 Hearing Date: August 12, 2026 Dept: 730

Superior Court of

California

County of Los Angeles

Department

730

SIMONROY

DELFIERRO QUINTO,

Plaintiff,

vs.

RYAN

AUDREY GOLDSMITH, et al.,

Defendant.

Case No.:

25STCV24357

Hearing

Date:

August 12, 2026

ORDER

GRANTING MOTION FOR SUMMARY JUDGMENT

I. BACKGROUND

Defendant Ryan Audley

Goldsmith ("Goldsmith") was allegedly driving his vehicle at an excessive speed, within the course and scope of his employment with Defendant The Hype Agency, LLC ("Hype"), while Plaintiff Simonroy Delfierro Quinto ("Quinto") was making a left turn in his own vehicle, resulting in a collision. Quinto sues Defendants for three causes of action, including negligence.

On May 8, Hype filed the instant motion for summary judgment, or, in the alternative, summary adjudication. Quinto filed an opposition. Hype replied.

III. LEGAL STANDARD

A

party may move for summary judgment "if it is contended that the action has no merit or that there is no defense to the action or proceeding." (Code Civ. Proc. § 437c, subd. (a).[1]) "[I]f all the evidence submitted, and all inferences reasonably deducible from the evidence and uncontradicted by other inferences or evidence, show that there is no triable issue as to any material fact and that the moving party is entitled to judgment as a matter of law," the moving party will be entitled to summary judgment. (Adler v. Manor Healthcare Corp. (1992) 7 Cal.App.4th 1110, 1119.)

The

moving party bears an initial burden of production to make a prima facie showing of the nonexistence of any triable issue of material fact, and if he does so, the burden shifts to the opposing party to make a prima facie showing of the existence of a triable issue of material fact. (Aguilar v. Atlantic Richfield Co. (2001) 25 Cal.4th 826, 850, citing to § 437c, subd. (p)(2).) To establish a triable issue of material fact, the party opposing the motion must produce substantial responsive evidence. (Sangster v. Paetkau (1998) 68 Cal.App.4th 151, 166.)

Neither

a moving nor responding party may rely on the mere allegations or denials of its pleadings. A moving party must submit specific admissible evidence showing that the responding party cannot establish at least one element of his, her or its cause of action or defense. The responding party, to defeat the motion, must submit specific admissible evidence showing that a triable issue of material fact does exist as to that element of the cause of action or defense. (Sangster v. Paetkau (1998) 68 Cal.App.4th 151, 166.)

The
“Golden Rule” on a motion for summary judgment or summary adjudication is that “if [a fact] is not set forth in the separate statement, it does not exist.” (Zimmerman, Rosenfeld, Gersh & Leeds LLP v. Larson (2005) 131 Cal.App.4th 1466, 1477, citing United Community Church v. Garcin (1991) 231 Cal.App.3d 327, 337.).

III. DISCUSSION

Hype requests the Court enter summary judgment as Goldsmith was not acting within the course and scope of his employment at the time of the incident, pursuant to the Going-and-Coming rule.

A. Statement of Facts

At the time of the incident, Goldsmith worked as a brand ambassador for Hype, a nationwide staffing agency. (UMF 1.) On the date of the incident, Goldsmith was specifically assigned to work as a temporary W2 employee for promotional events, including representing AMEX at the Crypto.com Arena. (UMF 2.) His job duties included supporting the Guest Services team by distributing wristbands for promotions, educating customers about the updated promotion, alleviating customer complaints, and reporting back to the AMEX team after each shift. (UMF 3.)

Hype did not hire Goldsmith as a driver. (UMF 4.) Goldsmith was not provided a vehicle or required to drive his personal vehicle. (UMF 4-5.) Hype did not reimburse Goldsmith for commute time or expenses to and from work. (UMF 6.)

On October 26, 2024,

Goldsmith and Quinto were involved in a motor vehicle incident while Goldsmith was on his way to work at the Crypto.com Arena. (UMF 8.) Goldsmith was not performing work or any other errand for Hype at the time of the incident. (UMF 10.)

Quinto sued Hype for negligence and negligent hiring, supervision, and retention, based upon an assertion that Hype, as Goldsmith's employer, was vicariously liable for Goldsmith's negligence, and by improperly allowing Goldsmith to operate the vehicle.

B. Vicarious Liability

Hype requests the Court grant summary judgment as to the cause of action for negligence via vicarious liability, as Goldsmith was not acting within the course and scope of his employment at the time of the incident. Vicarious liability only applies to employers when their employees have committed a tort within the scope of their employment. (*Pierson v. Helmerich & Payne Internat. Drilling Co.* (2016) 4 Cal.App.5th 608, 608.)

Hype argues, under the "going-and-coming" rule, Hype is not vicariously liable. Under the going-and-coming rule, an employee is generally not acting within the scope of employment while commuting to and from the workplace unless said employee is on a special "errand" or "mission" for the employer. (*Jeewarat v. Warner Brothers Entertainment, Inc.* (2009) 177 Cal.App.4th 427, 435-436.)

For cases involving temporary employees of temporary employment agencies, such as this, *Henderson v. Adia Services, Inc.* (1986) 182 Cal.App.3d 1069 is instructive. In *Henderson*, a temporary employee for a temporary employment agency rear-ended a plaintiff while driving the employee's own vehicle to a temporary job assigned by the agency. (*Id.* at 1071.) The Court found the going-and-coming rule applied, as the only distinction between *Henderson* and a typical going-and-coming rule case was the fact the defendant employee did not report to the same location each day he worked. (*Id.* at 1077.) Therefore, absent evidence of Goldsmith's commute constituting a "special errand" or a "special mission," such as returning tools from the job, attending an employment social function beneficial to the employer, or being en-route to a service call, Hype

is potentially barred from liability under the going-and-coming rule. (Ibid.)

Here,

the facts show Goldsmith was not performing a special mission or errand for Hype at the time of the incident. Goldsmith was driving to his temporary work assignment, as required by his employment with Hype. He was providing no other benefit to Hype. Hype satisfied the initial establishment that Goldsmith was not performing a special mission or errand.

Hype

also presented evidence demonstrating Goldsmith's vehicle was not required for purposes of his employment. The going-and-coming rule is inapplicable "in cases where the employer requires an employee to furnish a vehicle of transportation on the job." (*Ducey v. Argo Sales Co.* (1979) 25 Cal.3d 707, 721.) Even if not expressly stated, the going-and-coming rule can apply when an employee is impliedly required to provide a vehicle. (*Huntsinger v. Glass Containers Corp.* (1972) 22 Cal.App.3d 803, 809.)

The mere fact an employer could foresee an employee would use their personal automobile to reach a job site is irrelevant for purposes of determining whether there was an express or implied requirement to utilize a personal vehicle. (*Henderson, supra*, 182 Cal.App.3d at 1076.) The mere fact an employee may find it convenient or even essential to use an automobile to travel to and from a place of employment does not, alone, establish requirement. (*Id.* at 1078.) Generally, requirement to use a personal vehicle is only established if a party is required to use their vehicle, within the scope of their employment, outside of merely traveling to and from a single job site. (See *Moradi v. Marsh USA, Inc.* (2013) 219 Cal.App.4th 886, 890.) It also may be established if an employee is compensated for their travel time or expenses. (*Hinman v. Westinghouse Elect. Co.* (1970) 2 Cal.3d 956, 960.)

There are no facts here to establish Hype impliedly or expressly required Goldsmith to own and utilize his own vehicle for purposes of his employment. Goldsmith was not hired as a driver. His daily tasks did not require any amount of travel time beyond arriving at the location of his temporary assignment. Hype did not compensate Goldsmith for travel time or expenses in any capacity.

Quinto solely relies upon the fact Hype required brand

ambassadors to have “reliable transportation to and from the event” to establish Hype required Goldsmith to own and utilize his own vehicle. (AMF 5.) Brand ambassadors were expected to be timely, and for that reason, Goldsmith generally only accepted assignments within a defined geographic radius. (AMF 2, 12.) However, there is no evidence to suggest Hype ever required Goldsmith to have and use his own vehicle; so long as Goldsmith arrived on time, there were no limitations on Goldsmith’s mode of transportation. The mere fact Goldsmith may have found utilizing his own vehicle convenient is not indicative of any implied requirement. (Henderson, *supra*, 182 Cal.App.3d at 1078.)

No other exception to the going-and-coming rule applies. For example, Hype’s business did not create an inherent foreseeable risk to others that would make imposing liability fair. (See *Bussard v. Minimed, Inc.*, (2003) 105 Cal.App.4th 798 [employer was held liable for an employee’s motor vehicle accident because the employee was sickened by the employer’s improperly used pesticides, and was therefore unable to drive safely].) There is no alleged risk that arises from Goldsmith working as a brand ambassador resulting in injury to Quinto.

There are no material facts in dispute that Hype did not derive any benefit outside those derived by commute trips made by ordinary members of the work force and that the going-and-coming rule applies, with no applicable exceptions. All causes of action against Hype stemming from vicarious liability are subject to summary judgment.

C. Direct Negligence

Hype argues Hype cannot be directly liable to Quinto via the cause of action for negligent supervision, hiring, and retention, as Hype had no duty to Quinto. Quinto argues that Hype is liable for Goldsmith’s negligence under a respondeat superior theory, does not identify a duty that Hype owed to Quinto, but argues that the Rowland factors weigh in favor of a duty.

In determining whether a duty exists for a negligence cause of action, the Court employs a two-part framework. (*Brown v. USA Taekwondo* (2021) 11 Cal. 5th 204, 211.) First, it determines whether there is a duty of care or special relationship, and if so, whether the Rowland factors weighed in favor of limiting or eliminating this duty. (See *ibid.* [“The court thus asked, first, whether Brown had adequately alleged a special

relationship between the parties that gave rise to a legal duty to protect, and second, whether the Rowland factors weighed in favor of limiting or eliminating this duty”; “We conclude the two-part framework the Court of Appeal applied in this case accurately reflects the law as stated in this court’s precedents”].) The Rowland factors include: 1) foreseeability of harm to the plaintiff; 2) degree of certainty plaintiff suffered injury; 3) closeness of connection between the defendant’s conduct and injury suffered; 4) moral blame attached to the defendant’s conduct; 5) policy of preventing future harm; 6) burden on defendant and consequences to the community in imposing a duty of care; and 7) availability, cost, and prevalence of insurance for risk involved. (Rowland v. Christian (1968) 69 Cal.2d 108.)

Here, Quito has failed to identify a duty that Hype owed to Quito. Accordingly, the duty analysis fails on the first prong of the analysis, and Hype is not liable to Quito directly for negligence.

IV. CONCLUSION

Defendant The Hype Agency, LLC’s motion for summary judgment is GRANTED.

Hype is to give notice.

DATED:

August 12, 2026

Hon. Alexander C.D. Giza

Judge of the Superior Court

PLEASE TAKE NOTICE:

- Parties are encouraged to meet and confer after reading this tentative ruling to see if they can reach an agreement.
- If a party intends to submit on this tentative ruling, the party must send an email to the court at with the Subject line “SUBMIT” followed by

the case number. The body of the email must include the hearing date and time, counsel's contact information, and the identity of the party submitting.

- Unless all parties submit by email to this tentative ruling, the parties should arrange to appear remotely (encouraged) or in person for oral argument. You should assume that others may appear at the hearing to argue.

- If the parties neither submit nor appear at hearing, the Court may take the motion off calendar or adopt the tentative ruling as the order of the Court. After the Court has issued a tentative ruling, the Court may prohibit the withdrawal of the subject motion without leave.

[1] Undesignated statutory references are to the Code of Civil Procedure.